

## 26CHCV00917 26CHCV00917

County: los-angeles

Division: Civil Law and Motion

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### MOTION FOR PRELIMINARY INJUNCTION

Motion filed on June 4, 2026.

MOVING PARTY: Sang Hyun Lee (Plaintiff)

RESPONDING PARTY: Dong Wook Lee (Defendant)

NOTICE: OK.

RELIEF REQUESTED: An order restraining Defendant from transferring, selling, encumbering, refinancing, leasing, gifting, or otherwise disposing of the three disputed properties pending final judgment.

RULING: Denied without prejudice. The temporary restraining order issued July 16, 2026, is dissolved.

### BACKGROUND

Plaintiff filed the verified Complaint on March 5, 2026. Plaintiff filed a verified amendment purporting to add a resulting trust cause of action on March 10, 2026. Plaintiff filed the present motion on June 4, 2026. Plaintiff filed an ex parte application for a temporary restraining order on July 14, 2026. The Court issued a temporary restraining order concerning the California properties on July 16, 2026. Defendant filed an opposition, evidentiary objections, a request for judicial notice, and supporting declarations on July 30, 2026. Plaintiff filed a reply and supplemental declaration on August 4, 2026.

### DISCUSSION

## Procedural Issues

California Rules of Court, rule 3.1113(a) provides: “A party filing a motion, except for a motion listed in rule 3.1114, must serve and file a supporting memorandum. The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial.” Here, Plaintiff filed no supporting memorandum with the noticed motion. The Court treats that omission as an additional ground supporting denial, but reaches the evidentiary showing.

## Request for Judicial Notice

Defendant’s request for judicial notice of the court records attached as Exhibits A through K to the Yun Declaration is granted as to their existence and legal effect, but not the truth of disputed factual assertions contained in those records. (Yun Decl. ¶ 20, Exs. A-K; Evid. Code, § 452, subd. (d).)

## Evidentiary Objections

Sustained: 1 (lack of personal knowledge and speculation). The remaining objections are not material to the disposition and are not reached.

## Preliminary Injunction

“A trial court deciding whether to issue a preliminary injunction weighs two interrelated factors—the likelihood the moving party will prevail on the merits at trial and the relative balance of interim harms that are likely to result from the granting or denial of preliminary injunctive relief.” (Kings County Farm Bureau v. State Water Resources Control Bd. (2025) 115 Cal.App.5th 782, 801.) “In making its finding the trial court may consider the verified complaint and answer, as well as declarations, affidavits and oral testimony.” (Jessen v. Keystone Savings & Loan Assn. (1983) 142 Cal.App.3d 454, 460.)

Here, Plaintiff asserts claims for breach of oral contract, constructive trust, fraud/promissory fraud, financial abuse, accounting, partition, declaratory relief, and resulting trust. (Compl. at 3-9; FAC at 1-2.) Because the requested injunction would restrain disposition of the properties, the relevant merits question is whether Plaintiff has shown a likelihood of establishing the claimed ownership or equitable interests.

The motion concerns three properties: 9815 Nevada Avenue, Chatsworth, California (Nevada Avenue Property), which Plaintiff presently occupies; 3519 Springview Way, Palmdale, California (Palmdale Property); and 243 East Green Court, Saratoga Springs, Utah (Utah Property). Defendant holds record title to all three properties. (D. Lee Decl. ¶¶ 2-3, 6.) The July 16, 2026 temporary restraining order applies only to the Nevada Avenue and Palmdale Properties.

Plaintiff’s verified pleadings allege a 50/50 property-sharing agreement, that Plaintiff’s relatives provided funds used to satisfy the mortgage on the Nevada Avenue Property, that joint funds were used to purchase the Palmdale Property, and that Defendant executed a power of attorney authorizing Plaintiff to manage property and financial matters. (Compl. ¶¶ 3-10; FAC at 1-2.) Plaintiff further declares that Defendant represented she would manage the parties’ property and financial affairs for the family’s benefit and that Plaintiff did not intend or agree that Defendant would become the sole beneficial owner. (S. Lee Ex Parte Decl. ¶¶ 5-8.) This evidence provides some support for Plaintiff’s claimed equitable interests.

The showing remains limited, however. The verified pleadings and declarations do not identify when, by what words or conduct, or with respect to which properties Defendant allegedly agreed to the 50/50 arrangement. They also do not explain how the identified payments and course of conduct establish Plaintiff’s claimed 50 percent interest in each property. The

declarations provide no comparable evidence of Plaintiff's contribution toward the Utah Property. Defendant denies the alleged agreement and declares that Plaintiff paid no portion of the purchase price of any property. (D. Lee Decl. ¶¶ 5, 8-9.)

The reply asserts that Plaintiff "will prove" the alleged agreement, but supplies no authority or additional sworn facts identifying its terms or scope. (Reply at p. 3.) The supplemental declaration addresses the properties' acquisition values and mortgage status and the parties' financial circumstances, but adds no facts concerning the alleged agreement or Plaintiff's contributions to the acquisitions. (Supp. S. Lee Decl. ¶¶ 3-9.)

The present merits showing is therefore colorable but limited and disputed. It does not weigh strongly in favor of preliminary relief. The Court makes no determination concerning Plaintiff's ultimate ownership claims.

"To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits." (Costa Mesa City Employees' Assn. v. City of Costa Mesa (2012) 209 Cal.App.4th 298, 305.) While "the mere possibility of harm" is insufficient, a plaintiff need not wait until actual harm occurs and may seek relief against a threatened infringement of its rights. (Ibid.) "An injunction cannot issue in a vacuum based on the proponents' fears about something that may happen in the future. It must be supported by actual evidence that there is a realistic prospect that the party enjoined intends to engage in the prohibited activity." (Korean Philadelphia Presbyterian Church v. California Presbytery (2000) 77 Cal.App.4th 1069, 1084.)

Here, the only assertion concerning a threatened disposition in Plaintiff's moving declaration is that Plaintiff "is informed and believes" Defendant "may attempt" to dispose of the properties. (S. Lee Decl. ¶ 10.) The Court has sustained Defendant's objection to that statement. Plaintiff's ex parte declaration infers a risk from the expungement of the lis pendens and the assertions in Defendant's expungement papers that the lis pendens impaired her ability to deal with the properties. (S. Lee Ex Parte Decl. ¶¶ 11-23.) Those circumstances establish the removal of a restraint on title, but do not establish a realistic prospect of a sale, transfer, refinancing, encumbrance, or gift.

The supplemental declaration describes the harm that could result if such a transaction occurred and argues that Defendant could bear the restraint, but identifies no pending or proposed transaction. (Supp. S. Lee Decl. ¶¶ 3-9.) That a transaction could impair property-specific relief establishes the seriousness of the potential harm, but does not establish that the harm is threatened.

Defendant declares that no property has been listed or offered for sale, no sale or escrow is pending, and she has not applied for or negotiated financing or taken any step toward a disposition. Defendant also declares that she has no present intention of disposing of the properties during this action. (D. Lee Decl. ¶¶ 10-13.)

The July 16 TRO was issued on the ex parte record then before the Court, before Defendant filed the present opposition and declaration. (July 16, 2026 Minute Order at pp. 1-2.) On the fuller record now presented, Plaintiff has not shown a realistic prospect of a disposition during the litigation. The interim-harm factor therefore does not favor preliminary relief. Considered together with Plaintiff's limited merits showing, denial is warranted at this time.

## CONCLUSION

The motion for preliminary injunction is denied without prejudice to a renewed application supported by materially changed facts. The July 16, 2026 temporary restraining order is dissolved.